

Tentative Rulings for July 1, 2026
Department 501

For any matter where an oral argument is requested and any party to the hearing desires a remote appearance, such request must be timely submitted to and approved by the hearing judge. In this department, the remote appearance will be conducted through Zoom. If approved, please provide the department's clerk a correct email address. (CRC 3.672, Fresno Sup.C. Local Rule 1.1.19)

There are no tentative rulings for the following cases. The hearing will go forward on these matters. If a person is under a court order to appear, he/she must do so. Otherwise, parties should appear unless they have notified the court that they will submit the matter without an appearance. (See California Rules of Court, rule 3.1304(c).) *The above rule also applies to cases listed in this "must appear" section.*

The court has continued the following cases. The deadlines for opposition and reply papers will remain the same as for the original hearing date.

23CECG03206 *John "HJ" Doe v. Fresno Unified School District* is continued to Tuesday, July 14, 2026, at 3:30 p.m. in Department 501.

(Tentative Rulings begin at the next page)

Tentative Rulings for Department 501

Begin at the next page

(03)

Tentative Ruling

Re: **McGrew v. Clovis Unified School District**
Case No. 23CECG03559

Hearing Date: July 1, 2026 (Dept. 501)

Motion: Defendant Tony Duong's Motion to Strike First Amended Complaint and Doe Amendment to Complaint

Tentative Ruling:

To deny defendant's motion to strike the first amended complaint and the Doe amendment to the complaint. To order defendant to file and serve his answer to the first amended complaint within ten days of the date of service of this order. (Code Civ. Proc., § 436.)

Explanation:

Under Code of Civil Procedure section 436, "The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading. (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." (Para. breaks omitted.) However, the grounds for a motion to strike must appear on the face of the pleading, or from matters that the court may judicially notice. (Code Civ. Proc., § 437.) Thus, the court may not consider evidence extrinsic to the complaint when ruling on a motion to strike, other than matters that are properly subject to judicial notice. (*Ibid.*) "In passing on the correctness of a ruling on a motion to strike, judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth. In ruling on a motion to strike, courts do not read allegations in isolation." (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255, citations omitted.)

Here, defendant Tony Duong moves to strike the Doe amendment adding him to the first amended complaint based on his contention that plaintiff already knew his identity before she filed her original complaint and thus she cannot take advantage of the Doe amendment procedure under Code of Civil Procedure section 474.

Under section 474, "When the plaintiff is ignorant of the name of a defendant, he must state that fact in the complaint, or the affidavit if the action is commenced by affidavit, and such defendant may be designated in any pleading or proceeding by any name, and when his true name is discovered, the pleading or proceeding must be amended accordingly..." (Code Civ. Proc., § 474.)

"Section 474 allows a plaintiff who is ignorant of a defendant's identity to designate the defendant in a complaint by a fictitious name (typically, as a 'Doe'), and to amend the pleading to state the defendant's true name when the plaintiff subsequently discovers it. When a defendant is properly named under section 474, the

amendment relates back to the filing date of the original complaint. Section 474 provides a method for adding defendants after the statute of limitations has expired, but this procedure is available only when the plaintiff is actually ignorant of the facts establishing a cause of action against the party to be substituted for a Doe defendant. 'The question is whether [the plaintiff] knew or reasonably should have known that he had a cause of action against [the defendant].'" (*McClatchy v. Coblenz, Patch, Duffy & Bass, LLP* (2016) 247 Cal.App.4th 368, 371–372, citations, italics, and footnote omitted.)

" 'Ignorance of the *facts* giving rise to a cause of action is the "ignorance" required by section 474, and the pivotal question is, "did plaintiff know *facts*?" not "did plaintiff know or believe that [he] had a cause of action based on those facts?" ' 'Although it is true that a plaintiff's ignorance of the defendant's name must be genuine (in good faith) and not feigned and that a plaintiff need not be aware of each and every detail concerning a person's involvement before the plaintiff loses his ignorance, it is equally true that the plaintiff does not relinquish [his] rights under section 474 simply because [he] has a suspicion of wrongdoing arising from one or more facts [he] does know.'" (*Id.* at p. 372, citations and italics omitted.)

In the present case, defendant contends that plaintiff admitted that she knew his identity before she filed the complaint, as she stated in her deposition testimony that she knew the bus driver's first name was "Tony." (Shapazian decl., Exhibit F, plaintiff's depo., p. 23: 11-12.) He also claims that plaintiff's mother testified at her deposition that the bus driver's name was "Tony", although she did not know his last name. (Shapazian decl., Exhibit G, Guadalupe Murrillo depo., p. 16:20-22.)

First, a motion to strike cannot rely on evidence that is extrinsic to the pleading being challenged, and must only rely on the allegations of the pleading as well as judicially noticed matters. (Code Civ. Proc., § 437.) Thus, to the extent that defendant relies on the plaintiff's and her mother's deposition testimony, the motion is improper and defective. Defendant has not claimed or shown that plaintiff's and her mother's deposition testimony is judicially noticeable or otherwise proper to consider in ruling on a motion to strike. The deposition testimony is clearly extrinsic to the allegations of the complaint and not judicially noticeable. Therefore, the court may not consider the deposition testimony in ruling on the motion to strike. Without the deposition testimony, there is no basis for finding that the Doe amendment is improper or false, as there is nothing in the allegations of the first amended complaint that would show that plaintiff knew the identity of the bus driver when she filed the action. Thus, the court may deny the motion to strike for this reason alone.

Also, even if the court were to consider plaintiff's and her mother's deposition testimony, it would still deny the motion. The plaintiff and her mother testified on September 26, 2025 that they knew the bus driver's first name was "Tony." However, they never stated that they knew his last name, or that they had any way to know his full name for the purpose of naming him in the complaint. The fact that plaintiff knew in late September of 2025 that the bus driver's name was Tony does not mean that she knew his full name in August of 2023 when she filed the original complaint, or that she knew his full name in January of 2024 when she filed the first amended complaint. Plaintiff claims that she did not learn the bus driver's full name until defendant Clovis Unified School District answered discovery, and that she only learned that his actual name was Ngan Van Duong after Clovis Unified filed its motion for summary judgment. Thus, even if the court were to consider the plaintiff's deposition testimony, it would still deny the motion to strike

because the evidence indicates that plaintiff only knew the bus driver's first name, and she did not know his full name until months after she filed her original and first amended complaint. In other words, plaintiff's Doe amendment adding Duong to the case was not false or improper.

Finally, to the extent that defendant argues that plaintiff's government tort claim was also false and improper because it failed to name him, the argument is misplaced and the court intends to disregard it. Failure to file a timely government tort claim may support a general demurrer to the complaint, as the filing of a government claim is an essential prerequisite to bringing an action against a public entity. (Gov. Code, §§ 910; 950.2.) The claim should include information about the nature of the plaintiff's injury, including "[t]he date, place and other circumstances of the occurrence or transaction which gave rise to the claim asserted." (Gov. Code, § 910, subd. (c).) However, the claims statute does not require the plaintiff to identify the government employee who caused the injury. (*Ibid.*)

Here, defendant has not brought a demurrer to the first amended complaint, so his contention that the government claim was defective is misplaced. A motion to strike is not a general demurrer, and it does not assert that the plaintiff's complaint fails to state facts sufficient to constitute a cause of action. Therefore, defendant cannot use a motion to strike to challenge the alleged defects in the underlying tort claim.

In any event, defendant's motion fails to show that tort claim was defective or improper. Defendant admits that plaintiff served a timely claim with Clovis Unified on January 27, 2023, and that the claim was rejected on March 13, 2023. (Shapazian decl., Exhibits A and B. The court will take judicial notice of the claim filed by plaintiff and Clovis Unified's rejection of the claim.) The claim stated the date of the injury and described the circumstances leading up to the injury. (Shapazian decl., Exhibit A.) The claim also stated that the bus driver failed to warn of the dangerous condition on the bus or clean up the spilled liquid that caused plaintiff to fall. (*Ibid.*) While the claim did not name the bus driver, the claims statute does not require the employee who caused the injury to be named. (Gov. Code, § 910, subd. (c).) It only requires the plaintiff to describe "[t]he date, place and other circumstances of the occurrence or transaction which gave rise to the claim asserted." The claim here provided all of the relevant information about the incident, so defendant has failed to show that the claim was defective. As a result, the court intends to disregard defendant's argument regarding the government claim.

In summary, the court intends to deny the motion to strike and order defendant Tony Duong to file his answer to the FAC.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK on 06/29/26
(Judge's initials) (Date)

(49)

Tentative Ruling

Re: **California Fair Plan Association v. Shaver Lake Propane**
Superior Court Case No. 25CECG04660

Hearing Date: July 1, 2026 (Dept. 501)

Motion: Application for Admission of David Dahlmeier to Appear as Counsel for Defendant Shaver Lake *Pro Hac Vice*

Tentative Ruling:

To grant. (Cal. Rules of Court, Rule 9.40(a).

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK on 06/29/26
(Judge's initials) (Date)

(47)

Tentative Ruling

Re: **Kenneth Paul Atrat v. Rayna Savala**
Superior Court Case No. 24CECG04266

Hearing Date: July 1, 2026 (Dept. 501)

Motion: By defendant, Rayna Savala, to Vacate Dismissal

Tentative Ruling:

To deny defendant, Rayna Savala's motion to vacate dismissal.

Explanation:

Defendant, Rayna Savala ("Savala" or "defendant") files this motion to vacate dismissal, where Savala asks this Court to set aside Plaintiff Kenneth Paul Atrat's ("Atrat" or "plaintiff") voluntary dismissal without prejudice of the entire action and all causes of action. Savala's Motion is based on Code of Civil Procedure, section 473 subdivisions (b) and (d), along with "equitable powers" and due process claims.

Atrat filed this action on October 1, 2024. (Savala Decl., ¶ 2.) Savala filed an Answer to the Complaint on November 13, 2024. (Request for Judicial Notice, Ex. 1.) On July 22, 2025, Savala filed a Cross-Complaint against a third-Party for Elder Abuse. (RJN Ex. 2, the "2025 Cross-Complaint.") The 2025 Cross-Complaint was filed without first obtaining Court approval, the caption identified the Superior Court of Santa Clara, a different county, and was never served on the third-party. (*Id.*) Concurrently with the 2025 Cross-Complaint, Savala filed a declaration regarding striking the Complaint. (RJN Ex. 3, Minute Order Dated January 21, 2026, Denying Motion to Strike.)

On November 13, 2025, Savala sought leave to file an amended Cross-Complaint against the Atrat for defamation, slander, elder abuse/assault, conspire to trespass, and intentional infliction of emotional distress. (RJN Ex. 4, Notice of Motion and Motion for Leave to file Cross-Complaint.) The motion for leave to file Cross-Complaint did not reference or identify the August 2025 Cross-Complaint, and was scheduled to be heard March 5, 2026. (*Id.*)

On February 11, 2026, the Court provided the parties with notice that the 2025 Cross-Complaint against a third-party had been voided. (RJN Ex. 5.)

Atrat promptly submitted his Request for Dismissal (CIV-110), seeking dismissal without prejudice as to the entire action as to all parties and all causes of action. (RJN Ex. 6, Notice of Entry of Dismissal.) The court docket reflects that the Request for Dismissal was served on Defendant on February 12, 2026, both by mail to Defendant at 12937 Road 35, Madera, CA 93636, and electronic filing/service. (*Id.*)

The clerk entered the dismissal on February 13, 2026, served the entry of dismissal on the parties on February 23, 2026, and Atrat served Savala with Notice of Entry of Dismissal (CIV-120) the same day and at the same Madera address of Savala's most recent filing. (*Id.*)

Code of Civil Procedure, section 473 subdivision (b)

Code of Civil Procedure section 473, subdivision (b), provides that a court may relieve a party from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. It must be made within 6 months after the judgment, dismissal, order, or proceeding was taken. Relief may be based either on an "attorney affidavit of fault," in which event, relief is mandatory; or declarations or other evidence showing "mistake, inadvertence, surprise or excusable neglect," in which event relief is discretionary.

With respect to discretionary relief under section 473, subdivision (b), the party moving for relief on the basis of "mistake, inadvertence, surprise, or excusable neglect" must show specific facts demonstrating that one of these conditions was met. (*Hopkins & Carley v. Gens* (2011) 200 Cal.App.4th 1401, 1410.) The burden is on the moving party to show that the neglect was excusable: i.e., that the default could not have been avoided through the exercise of ordinary care. (*Jackson v. Bank of America* (1983) 141 Cal.App.3d 55, 58.)

Under these circumstances, Code of Civil Procedure section 473, subdivision (b) does not apply. Atrat elected to dismiss his action without prejudice pursuant to Cal. Code of Civil Procedure section 581. (Savala Decl. ¶ 7; RJN Ex. 6.)

Code of Civil Procedure section 581, subdivision (c) provides that "[a] plaintiff may dismiss his or her complaint, or any cause of action asserted in it, in its entirety, or as to any defendant or defendants, with or without prejudice prior to the actual commencement of trial.

Under these circumstances, Atrat had every right to dismiss this case, and there was no mistake or inadvertence at issue. Accordingly, principles of equity do not apply under Code of Civil Procedure section 473, subdivision (b) where Atrat dismissed his action. (Savala's Moving papers, pg. 25:20-21.) Furthermore, Savala's confusion about hearing dates (Savala Moving Papers, pg. 7:2-18) does not apply, as her confusion pertained to the motion to strike, which the court denied on January 21, 2026. (RJN Ex. 3.) That confusion has no bearing on a plaintiff voluntarily dismissing their case.

Code of Civil Procedure, section 473 subdivision (d)

Code of Civil Procedure section 473, subdivision (d) states, "The court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order."

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Tentative Ruling

Re: ***In re: Jameson O'Brien***
Superior Court Case No. 26CU00572

Hearing Date: July 1, 2026 (Dept. 501)

Motion: Petition to Compromise Minor's Claim

Tentative Ruling:

To grant the Amended Petition filed on June 8, 2026. The court intends to sign the proposed order. No appearances are necessary.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK on 06/29/26
(Judge's initials) (Date)

(03)

Tentative Ruling

Re: ***Sanchez v. Maddox Farms, LLC***
Case No. 24CECG04945

Hearing Date: July 1, 2026 (Dept. 501)

Motion: Plaintiff's Motion for Approval of PAGA Settlement

Tentative Ruling:

To deny plaintiff's motion for approval of the PAGA settlement, without prejudice.
(Labor Code, § 2699.)

Explanation:

1. Introduction

Under Labor Code section 2699, “[t]he superior court shall review and approve any settlement of any civil action filed pursuant to [PAGA]. The proposed settlement shall be submitted to the agency at the same time that it is submitted to the court.” (Lab. Code, § 2699, subd. (i)(2).)

The statute does not explain what exactly the trial court should consider when reviewing a proposed PAGA settlement. However, recently the Court of Appeal in *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56 did provide some guidance. The court explained that “many federal district courts have applied the ‘fair, reasonable, and adequate’ standard from class action cases to evaluate PAGA settlements.” (*Id.* at pp. 75–76, disapproved on other grounds by *Turrieta v. Lyft, Inc.* (2024) 16 Cal.5th 664.)

On the other hand, “PAGA does not provide that aggrieved employees must be heard on the approval of PAGA settlements... PAGA provides no mechanism for aggrieved employees, including those pursuing PAGA lawsuits, to be heard in objection to another PAGA settlement. This concession is dispositive, and we will not read a requirement into a statute that does not appear therein.” (*Id.* at p. 79, internal citation omitted.)

2. Notice to LWDA

Labor Code section 2699, subdivision (l)(2), states that “[t]he proposed settlement shall be submitted to the agency at the same time that it is submitted to the court.”

Here, plaintiff's counsel states that notice of the settlement was provided to the LWDA on May 20, 2026. (Adams decl., ¶ 31.) However, according to the copy of the notice attached to his declaration, the notice was actually provided on January 29, 2026. (Exhibit E to Adams decl.) Nor could plaintiff's counsel have given notice in May of 2026, since he executed and filed the declaration in January of 2026. In any event, the LWDA has been given notice of the settlement and it has not objected to the settlement, which satisfies the requirements of the statute.

3. Is the Settlement Fair, Adequate, and Reasonable?

As mentioned above, the Court of Appeal in *Moniz v. Adecco USA, Inc.*, *supra*, 72 Cal.App.5th 56 stated that the trial court should review PAGA settlements to determine whether they are fair, adequate and reasonable. (*Moniz, supra*, at pp. 75-77.) “Because many of the factors used to evaluate class action settlements bear on a settlement’s fairness—including the strength of the plaintiff’s case, the risk, the stage of the proceeding, the complexity and likely duration of further litigation, and the settlement amount—these factors can be useful in evaluating the fairness of a PAGA settlement.” (*Id.* at p. 77.)

Here, plaintiff has adequately shown that the settlement is fair, adequate, and reasonable.

A. Strength of Case: Plaintiff calculated the potential exposure by multiplying the total number of pay periods in which a violation occurred by \$100. There were an estimated 3,075 pay periods with a PAGA violation, so the total potential penalties were \$307,500. However, plaintiff’s counsel had to discount the total potential recovery based on the strength of defendant’s defenses, the risk that the court would reduce the penalties even if plaintiff prevailed at trial, and the risks and costs of bringing the case to trial.

Therefore, plaintiff has shown that the case was relatively strong, but entailed considerable risks as well, including the risk that he might not obtain anything at trial, or that, even if he did prevail, the award might be substantially reduced by the court. As a result, this factor weighs in favor of approving the settlement.

B. Stage of the Proceeding: A presumption of fairness exists where the settlement is reached through arm’s length mediation between adversarial parties, where there has been investigation and discovery sufficient to allow counsel and the court to act intelligently, and where counsel is experienced in similar litigation. (*Dunk v. Ford Motor Company* (1996) 48 Cal. App 4th 1794, 1802.) Here, the case settled after the parties exchanged informal discovery and attended mediation with a neutral mediator. It appears that counsel obtained sufficient information to make an informed decision about settling the case. Plaintiff’s counsel’s firm is also highly experienced in representative litigation. Therefore, this factor weighs in favor of approving the settlement.

C. Risks of Litigating Case through Trial: Plaintiff contends that, while the potential maximum recovery here was substantial, the defendant raised strong defenses and litigating the case through trial would have involved considerable risks for plaintiff. There would also have been substantial costs to both parties in trying the case. There was also the risk that the court would have reduced the amount of penalties substantially even if plaintiff prevailed at trial. Therefore, this factor weighs in favor of approving the settlement.

D. Amount of Settlement: As discussed above, the \$275,000 gross settlement amount appears to be reasonable given defendant’s strong defenses and the likelihood that plaintiff would not be able to recover the full amount of penalties he sought. There is also a risk that the trial court would exercise its discretion to reduce the amount of penalties even if plaintiff prevailed at trial. Therefore, plaintiff’s decision to settle for a gross amount of \$275,000 was reasonable under the circumstances.

E. Experience and Views of Counsel: Plaintiff's counsel are highly experienced in class and representative litigation. They have stated that the settlement is fair, adequate and reasonable under the circumstances. Therefore, this factor weighs in favor of approval.

F. Government Participation: No government entity participated in the case, so this factor does not favor either approval or disapproval of the settlement.

4. Attorney's Fees and Costs

Counsel has requested \$96,250 in fees, which is 35% of the gross settlement. However, counsel has not provided any information about the hours he and the other attorneys of his firm worked on the case or what their rates are. Thus, he has not provided evidence to allow the court to perform a lodestar cross-check to determine whether the requested fees are reasonable. (*Laffitte v. Robert Half International, Inc.* (2016) 1 Cal.5th 480, 503 [holding that, while attorney's fees may be awarded based on a percentage of the total class settlement, the trial court also has discretion to do a lodestar cross-check of the fees].) As a result, the court finds that plaintiff's counsel has not shown that the request for \$96,250 in fees is reasonable here.

On the other hand, counsel has adequately explained the request for \$8,257.49 in costs. He attaches a copy of an invoice from a filing service to his declaration, which includes a breakdown of the costs incurred in the case. (Exhibit D to Adams decl.) Thus, he has shown that the request for an award of \$8,257.49 in costs is reasonable.

5. Administration Costs

The settlement administrator, ILYM Group, Inc. will receive up to \$4,250 to cover administration costs. However, ILYM has not provided a declaration from one of its representatives stating how much it will charge for administration costs. Therefore, plaintiffs have not shown that the requested administration costs are reasonable.

6. Incentive Award to Named Plaintiffs

The settlement also provides that the named plaintiff will receive an incentive award of \$10,000. Plaintiff has provided a declaration describing the work he did on the case, so plaintiff has shown that an incentive award of \$10,000 is reasonable to compensate him.

7. Conclusion

The court intends to deny the order approving the PAGA settlement without prejudice and require plaintiffs' counsel to provide additional evidence regarding the requested attorney's fees and settlement administrator's fees.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order

(37)

Tentative Ruling

Re: ***Garcia v. Ford Motor Company***
Superior Court Case No. 25CECG02366

Hearing Date: July 1, 2026 (Dept. 501)

Motion: By Defendant FF US Acquisition Corp. for an Order Deeming
Admissions Admitted and for Monetary Sanctions

Tentative Ruling:

To find defendant FF US Acquisition Corp.'s motion to deem admissions admitted moot.

To impose monetary sanctions in favor of defendant FF US Acquisition Corp. and against plaintiff Pablo Garcia. (Code Civ. Proc. §§ 2023.010, subd. (d), 2023.030, subd. (a).) Plaintiff is ordered to pay \$1,145 in sanctions to Hawxhurst LLP, within 30 days of the clerk's service of the minute order.

Explanation:

In the case at bench, defendant served plaintiff with Requests for Admissions (Set One) on January 28, 2026. (Nichols Decl., ¶ 2.) On March 16, 2026, defendant filed this motion to deem admissions admitted. After realizing the responses had not been served on this defendant, plaintiff served responses on defendant June 17, 2026. (Lara Decl., ¶ 7.) Accordingly, the court will only consider the issue of sanctions.

Sanctions are mandatory against a party whose failure to respond timely necessitates a motion to deem admitted. (Code Civ. Proc., § 2033.280, subd. (c).) Here, plaintiff's claim that the discovery was improperly served lacks merit as it appears that plaintiff responded and served the discovery, just failing to include the propounding party, when responses were due. (Lara Decl., ¶ 5.) It also appears that plaintiff was given multiple opportunities to correct his own service issue and failed to do so. (Nichols Reply Decl., ¶ 3.) The court finds it reasonable to award sanctions in the amount of \$1,145, representing one hour to prepare the motion and one hour for the reply at the billing rate of \$572.50 per hour.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order

(47)

Tentative Ruling

Re: **Alexandra Seifert vs. Paul Michaelides**
Superior Court Case No. 25CECG03846

Hearing Date: July 1, 2026 (Dept. 501)

Motions: Plaintiff Alexandra Seifert's Motion to Compel Further
Discovery and Sanctions

Tentative Ruling:

To continue the motion to August 11, 2026 at 3:30 pm in Department 501 to allow further briefing as set forth below. Plaintiff, Alexandra Seifert, is ordered to file and serve a supplemental declaration authenticating and attaching copies of defendants' responses to the discovery at issue, and verifications, and all proof of service for the above, no later than the close of business on July 15, 2026.

Explanation:

Plaintiff Alexandra Seifert ("Seifert" or "plaintiff") files this motion to compel further responses from defendants, Paul Leon Michaelides ("Michaelides") and Paul L. Michaelides, D.D.S., M.Sc.D., Inc. ("DDS") (collectively "defendants.") Specifically, Seifert seeks to compel further responses to her Special Interrogatories, Set One and Form Interrogatories from Michaelides, and to compel further production as to Request for Production, Set One from DDS.

The Court continues the motion.

Seifert's Separate Statement in Support of Statement to Compel Further, submitted on March 9, 2026, purports to be in compliance with California Rules of Court, rule 3.1345(c). However, Seifert's declaration in support of her motion, submitted on March 9, 2026, is deficient. It does not provide the entire history of this discovery dispute. Nor does it provide a copy of the very responses Seifert seeks to have us find inadequate. The Separate Statement is not evidence, it merely a tool to aid the Court's review. Without this foundational evidence, the court cannot proceed. (See Cal. Rules of Court, rules 3.1113(j) and (k); the original or copies of all evidence that will be presented to the court at the motion hearing must be served along with the notice of motion and points and authorities [Code Civ. Proc., §1005, subd. (b); *David S. Karton, a Law Corp. v. Musick, Peeler Garrett LLP* (2022) 83 CA5th 1027, 1048.)

Furthermore, the Court notes that when an opposing party expressly objects to inadequate notice but then opposes the motion on the merits, the issue of defective notice may be waived. (*Carlton v. Quint* (2000) 77 Cal.App.4th 690, 697.) Here, defendants made substantive arguments to Seifert's combined motion.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Issued By: KCK on 06/29/26
(Judge's initials) (Date)